

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3464 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Brad Boles

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3464

By: Boles, Chapman, and
Dobrinski of the House

and

Paxton of the Senate

FLOOR SUBSTITUTE

An Act relating to energy; creating the Oklahoma Energy Storage Resource Safety Act; stating legislative intent; defining terms; requiring energy storage resources comply with certain safety codes and standards; providing for resolution if conflict exists; limiting application for certain energy storage resources; authorizing requirement for certain written report; listing required contents of written report; requiring certain cooperation; requiring certain information be provided; requiring the curing of noncompliance before commencement of operations; requiring certain energy storage resource to have emergency operations plan; listing requirements of emergency operations plan; requiring submission of emergency operations plan; requiring the offering of certain training to local first responders; listing requirements of training; prohibiting certain actions by political subdivisions; requiring certain agreements contain decommissioning provisions; requiring landowner make certain timely requests for grantee compliance; stating certain applicability; requiring certain financial assurance be delivered; stating acceptable forms of financial assurance; requiring certain amount of financial assurance; providing agreement contain certain provisions; detailing agreement provision requirements; assigning certain costs to

1 grantee; prohibiting certain cancellation of
2 financial assurance; making certain agreement
3 provisions void; providing for certain injunctive
4 relief; establishing fees for review and permitting
5 certain facilities by the Office of the Oklahoma
6 State Fire Marshal; limiting the amount of collected
7 fees; providing for distribution of collected fees;
8 requiring completion of certain report as soon as
9 practicable; requiring the State Fire Marshal
10 Commission to adopt certain rules; requiring fees and
11 timing to continue to conform if certain delegation
12 occurs; limiting application of act to certain
13 facilities; creating the Oklahoma Solar Energy
14 Development Act; stating legislative findings;
15 requiring owners of solar energy facilities to
16 provide certain statement to landowners; listing
17 minimum requirements of statements; authorizing
18 certain landowners the right to inspect records to
19 verify payments; requiring certain records be made
20 available; detailing the procedure for providing
21 records; requiring the annual reporting of
22 generation, nameplate capacity, and facility location
23 to the Oklahoma Corporation Commission; requiring the
24 keeping of liability insurance policy prior to
commencement of construction; requiring landowner be
added as additional insured to policy; requiring
certain evidence of policy be submitted to landowner;
requiring certain notice; requiring submission of a
notification of intent to build; requiring
Corporation Commission prescribe form and submission
requirements; listing certain required information;
requiring certain notification to board of county
commissioners or municipality; requiring publication
of certain notice by certain date; requiring copies
of notice be sent to certain specified parties;
requiring an affidavit in certain situations;
requiring the holding of a public meeting; requiring
notice of public meeting be published and submitted;
listing requirements of public meeting notice;
requiring certain notice to surface estate owner;
requiring certain provided information be
confidential and proprietary; requiring parties take
certain actions; stating confidentiality provisions
shall not be limited by certain agreements; providing
for certain penalties; listing requirements of notice
to surface estate; prohibiting commencement of
construction until all notification requirements are

1 satisfied; requiring notification to Corporation
Commission that certain requirements have been met;
2 providing for certain penalty; stating requirements
shall only apply to certain facilities; requiring
3 submission of certain site plans to the Office of the
Oklahoma State Fire Marshal at certain time; listing
4 requirements to be included in site plan; limiting
review of the Office of the Oklahoma State Fire
5 Marshal; requiring review be completed as soon as
practicable; allowing certain on-site actions to
6 proceed during review period; authorizing assessment
of certain fee; limiting the amount of collected fee;
7 providing for fee distribution; providing for
application to certain facilities; requiring
8 compliance with certain act; requiring submission of
certain evidence of financial assurance; providing
9 for certain calculations of financial assurance;
requiring financial assurance be certain percentage
10 of decommissioning estimate; authorizing Corporation
Commission to promulgate certain rules; granting
11 certain exclusive jurisdiction; providing for
codification; providing an effective date; and
12 declaring an emergency.

13
14
15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
18 is created a duplication in numbering, reads as follows:
19 Sections 1 through 8 of this act shall be known and may be cited as
20 the "Oklahoma Energy Storage Resource Safety Act".

21 SECTION 2. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
23 is created a duplication in numbering, reads as follows:

24 The Legislature finds that:

1 1. To protect the citizens of Oklahoma, energy storage
2 resources shall satisfy safety codes and standards; and

3 2. This act is intended to help Oklahoma secure the benefits of
4 energy storage resources to provide electric grid reliability.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 180.16 of Title 17, unless there
7 is created a duplication in numbering, reads as follows:

8 As used in the Oklahoma Energy Storage Resource Safety Act:

9 1. "Commencement of operations" means the date on which an
10 energy storage resource first delivers electricity to the grid in an
11 amount sufficient for commercial sale or use off-site from the
12 energy storage resource, but shall not include amounts of electrical
13 energy used only for the maintenance or testing of the energy
14 storage resource or related equipment;

15 2. "Energy storage resource" means a resource capable of
16 receiving electric energy from the electrical grid, or from a
17 generation source with which it is associated, and storing such
18 electric energy for later injection into the electrical grid;

19 3. "Energy storage resource agreement" means a lease agreement
20 between a grantee and a landowner that authorizes the grantee to
21 operate an energy storage resource on the leased property;

22 4. "Grantee" means a person, other than an electric utility
23 who:

24 a. leases property from a landowner, and

b. operates an energy storage resource on the property;
and

5. "Resource owner" means the entity having a majority equity interest in the energy storage resource, including its respective successors and assigns.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 180.17 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. An energy storage resource shall comply with the following minimum safety codes and standards for energy storage resource equipment or facilities:

1. The International Fire Code (IFC), as adopted and amended by the Oklahoma Uniform Building Code Commission, in effect at the time a construction permit is applied for; and

2. Criteria described in the National Fire Protection Association (NFPA) 855 2026 Standard for the Installation of Stationary Energy Storage Systems.

Where a conflict exists between the requirements of the IFC, as adopted and amended by the Oklahoma Uniform Building Code Commission, and the NFPA 855 2026 edition, the provisions of the NFPA 855 2026 edition shall take precedence. For an energy storage resource with a nameplate capacity equal to or less than one (1) megawatt, only the provisions of this subsection shall apply.

1 B. Before a construction permit is issued for an energy storage
2 resource, the entity responsible for fire inspection and primary
3 emergency response may require the resource owner to pay for an
4 independent, third-party engineer licensed in this state or other
5 consultant with appropriate expertise, to provide a written report
6 to the entity responsible for fire inspection and primary emergency
7 response and the resource owner determining:

8 1. Whether the energy storage resource, as proposed, complies
9 with subsection A of this section; and

10 2. To the extent the energy storage resource does not comply
11 with subsection A of this section, any appropriate actions to cure
12 such noncompliance in accordance with the NFPA 855 2026 edition.

13 C. Any resource owner that receives a lawful request pursuant
14 to subsection B of this section shall cooperate with the request.
15 Such cooperation shall include providing the engineer or consultant
16 with all necessary documents relating to the energy storage
17 resource's site layout, emergency operations plan, hazard mitigation
18 analysis, manufacturer specifications, product listings, including,
19 but not limited to, UL 9540 and UL 9540A reports, compliance with
20 the NFPA 855 2026 edition and other applicable referenced standards,
21 electrical drawings, monitoring procedures, and fire protection
22 system, as applicable to the proposed energy storage resource. If
23 the engineer or consultant identifies appropriate actions to cure
24 noncompliance under paragraph 2 of subsection B of this section, the

1 resource owner shall implement said appropriate actions before
2 commencement of operations.

3 D. Energy storage resources, other than energy storage systems
4 installed in one- and two-family dwellings as defined in the NFPA
5 855 2026 edition, in this state shall have and maintain, at an on-
6 site location accessible to local first responders, a site-specific
7 emergency operations plan. In accordance with the NFPA 855 2026
8 edition, the site-specific emergency operations plan shall identify:

9 1. Potential risks and hazards specific to the site;

10 2. Hazard mitigation measures;

11 3. Procedures for the safe shutdown, de-energizing, or
12 isolation of equipment and systems under emergency conditions,
13 including emergency procedures to be followed in case of fire;

14 4. Procedures for handling equipment damaged in a fire or other
15 emergency event;

16 5. Procedures and schedules for conducting drills using the
17 procedures listed under this subsection and documentation related to
18 the performance of the drills;

19 6. Procedures for communication between the operator of the
20 energy storage resource and first responders, including procedures
21 that facilitate communication between first responders and emergency
22 contacts for the resource operator; and
23
24

1 7. Emergency operations protocols to ensure safety during
2 critical events, including protocols that provide for the safety of
3 nearby residents, neighboring properties, and first responders.

4 E. Before commencement of operations, the resource owner shall
5 provide the site-specific emergency operations plan to the entity
6 responsible for fire inspection and primary emergency response.

7 F. Energy storage resource owners in this state shall offer to
8 local first responders, at no cost to the responders, education and
9 training regarding responding to an equipment failure incident at
10 the energy storage resource site. The training shall include:

11 1. Training on specific characteristics of the energy storage
12 resource technology;

13 2. Training on protecting first responders during incident
14 response;

15 3. Training on hazards commonly associated with incident
16 response;

17 4. Training on incident response protocols, including an
18 overview of the site-specific emergency operations plan developed
19 under subsection D of this section; and

20 5. An on-site review of the perimeter, major equipment, and
21 ingress and egress to the energy storage resource site.

22 G. Unless expressly authorized by law, political subdivisions
23 in this state shall not adopt, enforce, or maintain any rules,
24 regulations, codes, or standards that uniquely apply to energy

1 storage resources other than those set forth in the Oklahoma Energy
2 Storage Resource Safety Act.

3 SECTION 5. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 180.18 of Title 17, unless there
5 is created a duplication in numbering, reads as follows:

6 A. An energy storage resource agreement executed after the
7 effective date of this act shall provide that the grantee is
8 responsible for removing the grantee's components of an energy
9 storage resource facility from the landowner's property and that the
10 grantee shall, in accordance with any other applicable laws or
11 regulations, safely perform the following:

12 1. Clear, clean, and remove from the property each energy
13 storage resource and associated transformers and substations;

14 2. For each foundation of an energy storage resource,
15 transformer, or substation installed in the ground:

16 a. clear, clean, and remove the foundation from the
17 ground to a depth of at least three (3) feet below the
18 surface grade of the land in which the foundation is
19 installed, and

20 b. ensure that each hole or cavity created in the ground
21 by the removal is filled with soil of the same type or
22 a similar type as the predominant soil found on the
23 property;

1 3. For each buried cable, including power, fiber-optic, and
2 communications cables, installed in the ground:

- 3 a. clear, clean, and remove the cable from the ground to
4 a depth of at least three (3) feet below the surface
5 grade of the land in which the cable is installed, and
6 b. ensure that each hole or cavity created in the ground
7 by the removal is filled with soil of the same type or
8 a similar type as the predominant soil found on the
9 property; and

10 4. Clear, clean, and remove from the property each overhead
11 power or communications line installed by the grantee on the
12 property at the request of the landowner.

13 B. The agreement shall provide that, at the request of the
14 landowner, the grantee shall:

15 1. Clear, clean, and remove each road constructed by the
16 grantee on the property; and

17 2. Ensure that each hole or cavity created in the ground by the
18 removal is filled with soil of the same type or a similar type as
19 the predominant soil found on the property.

20 C. The agreement shall provide that, at the request of the
21 landowner, if reasonable, the grantee shall:

22 1. Remove from the property all rocks over twelve (12) inches
23 in diameter excavated during the decommissioning or removal process;
24

1 2. Return the property to a tillable state using scarification,
2 V-rip, or disc methods, as appropriate; and

3 3. Ensure that:

4 a. each hole or cavity created in the ground by the
5 removal is filled with soil of the same type or a
6 similar type as the predominant soil found on the
7 property, and

8 b. the surface is returned as near as reasonably possible
9 to the same condition as before the grantee dug holes
10 or cavities, including by reseeding pastureland with
11 native grasses prescribed by an appropriate
12 governmental agency, if any. Noninvasive grasses
13 shall be allowed when reseeding native grasses is not
14 economically feasible.

15 D. The landowner shall make a request under subsection B or C
16 of this section not later than the one hundred eightieth day after
17 the later of:

18 1. The date on which the landowner receives from the grantee
19 via certified mail a copy of a notification of intent to suspend
20 operations filed with a grid operator indicating an intent to
21 permanently cease operations; or

22 2. The date the landowner receives written notice of intent to
23 decommission the energy storage resource from the grantee.

1 E. The provisions of this section shall only apply to energy
2 storage resource agreements executed after the effective date of
3 this act and shall have no effect on existing agreements.

4 SECTION 6. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 180.19 of Title 17, unless there
6 is created a duplication in numbering, reads as follows:

7 A. An energy storage resource agreement executed after
8 effective date of this act shall provide that the grantee obtain and
9 deliver to the landowner evidence of financial assurance that
10 conforms to the requirements of this section to secure the
11 performance of the grantee's obligation to remove the grantee's
12 energy storage resource facilities located on the landowner's
13 property as described by Section 5 of this act. Acceptable forms of
14 financial assurance include a parent company guaranty with a minimum
15 investment grade credit rating for the parent company issued by a
16 major domestic credit rating agency, a letter of credit, a bond, or
17 another form of financial assurance reasonably acceptable to the
18 landowner.

19 B. The amount of the financial assurance shall be at least
20 equal to the estimated amount by which the cost of removing the
21 energy storage resource facilities from the landowner's property and
22 restoring the property to as near as reasonably possible the
23 condition of the property as of the date the agreement begins
24

1 exceeds the salvage value of the facilities, less any portion of the
2 value of the facilities pledged to secure outstanding debt.

3 C. The agreement shall provide that:

4 1. The estimated cost of removing the energy storage resource
5 facilities from the landowner's property and restoring the property
6 to as near as reasonably possible the condition of the property as
7 of the date the agreement begins, and the estimated salvage value of
8 the energy storage resource facilities, shall be determined by an
9 independent, third-party professional engineer licensed in this
10 state;

11 2. The grantee shall deliver to the landowner an updated
12 estimate, prepared by an independent, third-party professional
13 engineer licensed in this state, of the cost of removal and the
14 salvage value:

15 a. on or before the tenth anniversary of commencement of
16 operations of the energy storage resource facility,
17 and

18 b. at least once every five (5) years thereafter for the
19 remainder of the term of the agreement; and

20 3. The grantee is responsible for ensuring that the amount of
21 the financial assurance remains sufficient to cover the amount
22 required by subsection B of this section, consistent with the
23 estimates required by this subsection.

1 D. The grantee is responsible for the costs of obtaining
2 financial assurance described by this section and costs of
3 determining the estimated removal costs and salvage value.

4 E. The agreement shall provide that, if the grantee fails to
5 fulfill the scope of decommissioning and removal work specified in
6 the agreement, the grantee shall deliver the financial assurance not
7 later than the earlier of:

8 1. The date the energy storage resource agreement is
9 terminated; or

10 2. The twentieth anniversary of the commencement of operations
11 of the energy storage resources located on the landowner's property,
12 unless the term of the agreement is extended.

13 F. The grantee may not cancel financial assurance before the
14 date the grantee has completed the grantee's obligation to remove
15 the grantee's energy storage resource facilities located on the
16 landowner's property in the manner provided by this act, unless the
17 grantee provides the landowner with replacement financial assurance
18 at the time of or before the cancellation. In the event of a
19 transfer of ownership of the grantee's energy storage resource
20 facilities, the financial security provided by the grantee shall
21 remain in place until the date evidence of replacement financial
22 security meeting the requirements of this act is provided to the
23 landowner by the transferee.

1 G. The provisions of this section shall only apply to energy
2 storage resource agreements executed after the effective date of
3 this act and shall have no effect on existing agreements.

4 SECTION 7. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 180.20 of Title 17, unless there
6 is created a duplication in numbering, reads as follows:

7 A. A provision of an energy storage resource agreement executed
8 after the effective date of the Oklahoma Energy Storage Resource
9 Safety Act that purports to waive a right or exempt a grantee from a
10 liability or duty established under the Oklahoma Energy Storage
11 Resource Safety Act is void and unenforceable, but the remainder of
12 the agreement shall remain enforceable.

13 B. A resource owner shall comply with the decommissioning
14 obligations set forth in the Oklahoma Energy Storage Resource Safety
15 Act. A landowner subject to an energy storage resource agreement is
16 expressly authorized to bring an action in district court for
17 injunctive relief to enforce compliance with this act.

18 C. The provisions of this section are not exclusive. The
19 remedies provided in this section are in addition to any other
20 procedures or remedies provided by other law. Failure to comply
21 with the Oklahoma Energy Storage Resource Safety Act does not impair
22 the validity or enforceability of any lease, easement, mortgage,
23 deed of trust, or other interest in real property.

1 SECTION 8. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 180.21 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. For energy storage resource facilities located in areas
5 where no recognized local authority having jurisdiction exists, and
6 where, as a result, any component of an energy storage resource
7 facility or the energy storage resource facility itself is subject
8 to inspections, plan reviews, or permits from the Office of the
9 Oklahoma State Fire Marshal, as provided in the codes adopted by the
10 Oklahoma Uniform Building Code Commission, the State Fire Marshal
11 Commission may establish a fee rate of no more than six cents
12 (\$0.06) per square foot of surface physically occupied aboveground
13 by energy storage resource facility infrastructure. Such fee shall
14 be inclusive of all inspections, plan reviews, permit issuance, and
15 other review actions undertaken by the Office of the Oklahoma State
16 Fire Marshal in connection with the project, and the total fee shall
17 not exceed Five Hundred Thousand Dollars (\$500,000.00) for any
18 individual energy storage resource facility. Nothing in this
19 section shall be construed to authorize the collection of fees
20 beyond said amount, except as otherwise provided by law. Where a
21 recognized local authority having jurisdiction exists, such local
22 authority is subject to the same fee limitations as the Office of
23 the Oklahoma State Fire Marshal established in this subsection.

24 B. Any fees collected pursuant to subsection A of this section

1 shall be distributed as follows:

2 1. Seventy-five percent (75%) of such fees shall be
3 distributed to the local fire department providing primary fire
4 protection services to the jurisdiction where the facility is
5 located, within sixty (60) days of receipt. Funds distributed under
6 this paragraph shall be used solely for fire protection, fire
7 prevention, inspections, training, or emergency response activities
8 related to the facility; and

9 2. Twenty-five percent (25%) of such fees shall be distributed
10 to the permit issuing authority, whether the Office of the Oklahoma
11 State Fire Marshal or a recognized local authority having
12 jurisdiction, if delegated.

13 C. For purposes of this section, "recognized local authority
14 having jurisdiction" means a city, town, college, county, or fire
15 protection district that has been recognized by the Office of the
16 Oklahoma State Fire Marshal as the authority having jurisdiction for
17 permits, inspections, and enforcement under the adopted codes.

18 D. The Office of the Oklahoma State Fire Marshal or a local
19 authority having jurisdiction, where applicable, shall complete any
20 review subject to subsection A of this section as soon as
21 practicable, and in no event later than thirty (30) calendar days
22 following receipt of complete site plans. In the event the Office
23 of the Oklahoma State Fire Marshal does not complete its review
24

1 within thirty (30) calendar days, any applicable permits and
2 certificates shall be deemed issued.

3 E. The State Fire Marshal Commission shall adopt rules as
4 necessary to implement the provisions of this section, pursuant to
5 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
6 not limited to, fee collection and distributions.

7 SECTION 9. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 160.24 of Title 17, unless there
9 is created a duplication in numbering, reads as follows:

10 A. To the extent required by law, for wind energy facilities
11 located in areas where no recognized local authority having
12 jurisdiction exists, and where, as a result, any component of a wind
13 energy facility or the wind energy facility itself is subject to
14 inspections, plan reviews, or permits from the Office of the
15 Oklahoma State Fire Marshal, as provided in the codes adopted by the
16 Oklahoma Uniform Building Code Commission, the State Fire Marshal
17 Commission may establish a fee rate of no more than six cents
18 (\$0.06) per square foot of surface physically occupied aboveground
19 by wind energy facility's occupiable operations and maintenance
20 buildings. Such fee shall be inclusive of all inspections, plan
21 reviews, permit issuance, and other review actions undertaken by the
22 Office of the Oklahoma State Fire Marshal in connection with the
23 project, and the total fee shall not exceed Five Hundred Thousand
24 Dollars (\$500,000.00) for any individual wind energy facility.

1 Nothing in this section shall be construed to authorize the
2 collection of fees beyond said amount, except as otherwise provided
3 by law. Where a recognized local authority having jurisdiction
4 exists, such local authority is subject to the same fee limitations
5 as the Office of the Oklahoma State Fire Marshal established in this
6 subsection.

7 B. Any fees collected pursuant to subsection A of this section
8 shall be distributed as follows:

9 1. Seventy-five percent (75%) of such fees shall be distributed
10 to the local fire department providing primary fire protection
11 services to the jurisdiction where the facility is located, within
12 sixty (60) days of receipt. Funds distributed under this paragraph
13 shall be used solely for fire protection, fire prevention,
14 inspections, training, or emergency response activities related to
15 the facility; and

16 2. Twenty-five percent (25%) of such fees shall be distributed
17 to the permit issuing authority, whether the Office of the Oklahoma
18 State Fire Marshal or a recognized local authority having
19 jurisdiction, if delegated.

20 C. For purposes of this section, "recognized local authority
21 having jurisdiction" means a city, town, college, county, or fire
22 protection district that has been recognized by the Office of the
23 Oklahoma State Fire Marshal as the authority having jurisdiction for
24 permits, inspections, and enforcement under the adopted codes.

1 D. The Office of the Oklahoma State Fire Marshal or a local
2 authority having jurisdiction, where applicable, shall complete any
3 review subject to subsection A of this section as soon as
4 practicable, but in no event later than thirty (30) calendar days
5 following receipt of complete site plans. In the event the Office
6 of the Oklahoma State Fire Marshal does not complete its review
7 within thirty (30) calendar days, any applicable permits and
8 certificates shall be deemed issued.

9 E. The State Fire Marshal Commission shall adopt rules as
10 necessary to implement the provisions of this section, pursuant to
11 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
12 not limited to, fee collection and distributions.

13 F. If the Office of the Oklahoma State Fire Marshal delegates
14 any site plan review, permitting, or similar authority over a wind
15 energy facility to a recognized local authority having jurisdiction,
16 fees and timing shall continue to conform to the subsections of this
17 section.

18 G. The provisions of this section shall not apply to any
19 facilities that commenced construction before the effective date of
20 this act, including any subsequent maintenance, repairs,
21 modifications, or other work on, or repower of, existing facilities.

22 SECTION 10. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 809 of Title 17, unless there is
24 created a duplication in numbering, reads as follows:

1 Sections 10 through 20 of this act shall be known and may be
2 cited as the "Oklahoma Solar Energy Development Act".

3 SECTION 11. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 809.1 of Title 17, unless there
5 is created a duplication in numbering, reads as follows:

6 The Legislature finds that the prudent development of solar
7 energy resources requires assurances that the rights of private
8 landowners should be protected, that such landowners have access to
9 adequate information to verify the accuracy of their payments, among
10 other protections, and that public and mineral interest operators
11 receive sufficient notice of planned developments.

12 SECTION 12. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 809.2 of Title 17, unless there
14 is created a duplication in numbering, reads as follows:

15 As used in the Oklahoma Solar Energy Development Act:

16 1. "Commencement of construction" means the date on which the
17 owner or developer of a solar energy facility installs a post or
18 posts into the ground for panel or inverter foundations. The term
19 shall not include environmental assessments, surveys, preliminary
20 engineering, site preparation, or other activities associated with
21 assessment of development of the solar resources on a given parcel
22 of property;

23 2. "Facility" means a solar energy facility;
24

1 3. "Owner" means the entity having a majority equity interest
2 in a solar energy facility, including its respective successors and
3 assigns;

4 4. "Racking system" means the permanent structural framework,
5 including foundations, piles, mounts, or tracking equipment that is
6 designed to support, anchor, and orient photovoltaic modules or
7 related solar-energy-producing equipment at a solar energy facility
8 and that is integral to the facility's ability to generate
9 electricity;

10 5. "Solar energy facility" means an electric-generating
11 facility using photovoltaic or solar-thermal technologies with a
12 nameplate capacity greater than one (1) megawatt alternating current
13 (AC), designed to deliver energy to the electric grid and not
14 primarily to on-site load, unless otherwise specified by state law;
15 and

16 6. "Working interest" means the interest in a well or the
17 interest in a unit created by order of the Corporation Commission
18 that entitles the oil and gas lessee, or the lessee's successor or
19 assign, to drill for and produce oil and gas.

20 SECTION 13. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 809.3 of Title 17, unless there
22 is created a duplication in numbering, reads as follows:

23 For landowners who are paid based on the amount of electrical
24 energy produced from the conversion of solar energy, the owner of

1 any solar energy facility shall provide a statement within ten (10)
2 business days of the payment to the landowner in consideration for
3 the use of the property of the landowner to generate electrical
4 energy. The statement shall provide, at a minimum, information
5 reasonably necessary to assist the landowner an understanding of the
6 basis for the payment to the landowner and a means of confirming its
7 accuracy.

8 SECTION 14. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 809.4 of Title 17, unless there
10 is created a duplication in numbering, reads as follows:

11 A. Any landowner who has, through a lease, easement, or other
12 arrangement, allowed a solar energy facility foundation or racking
13 system to be placed on the property of the landowner and who is paid
14 based on the amount of electrical energy produced from the
15 conversion of solar energy shall have the right to inspect the
16 records of the owner of the solar energy facility for the purpose of
17 confirming the accuracy of any payments made to the landowner within
18 the past twenty-four (24) months.

19 B. The owner of any solar energy facility, any portion of which
20 is located in this state, upon request of a landowner with the right
21 to inspect records as set forth in subsection A of this section,
22 shall make available, within a reasonable time, all records,
23 documents, data, and other information, or copies thereof, as are
24 necessary for a landowner to conduct the inspection specified in

1 subsection A of this section. The records shall be made available
2 within the confines of this state and in a location and manner that
3 affords a landowner reasonable access to the records during normal
4 business hours. The landowner shall be permitted one request per
5 calendar year and be afforded a reasonable length of time to
6 complete the inspection but shall not cause undue disruption to the
7 operations of the owner during the inspection. The records shall be
8 subject to the confidentiality requirements contained in the
9 respective landowner lease agreement.

10 SECTION 15. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 809.5 of Title 17, unless there
12 is created a duplication in numbering, reads as follows:

13 A. The owner of any solar energy facility shall report to the
14 Oklahoma Corporation Commission the electrical energy generated by
15 the solar energy facility, the nameplate capacity of the solar
16 energy facility, and the location of the solar energy facility.

17 B. If a solar energy facility contains generating units with
18 different nameplate capacities, the information required in
19 subsection A of this section shall be reported separately for each
20 nameplate capacity.

21 C. The information required by this section shall be reported
22 on an annual basis, with the information due not later than March 1
23 of each calendar year.

SECTION 16. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.6 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. Prior to commencing construction of a solar energy facility, the owner of the solar energy facility shall obtain and keep in effect either:

1. A commercial general liability insurance policy with coverage limits consistent with prevailing industry standards; or

2. A combination of self-insurance and excess liability insurance.

B. The owner shall cause the owner of the land on which the solar energy facility is located to be named as an additional insured under the policy.

C. The owner shall deliver to the landowner a certificate of insurance evidencing the policy. The landowner shall be given not less than thirty (30) days prior written notice of any material modification, cancellation, or termination of the insurance policy.

SECTION 17. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.7 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. The owner of a solar energy facility shall submit a notification of intent to build a facility to the Oklahoma Corporation Commission at least six (6) months before the commencement of construction, as defined in Section 12 of this act.

1 The Corporation Commission shall prescribe the form and submittal
2 requirements of the notification; provided, the information required
3 on the notification form shall include a description of the
4 facility, the nameplate capacity, the general location of the
5 facility, and a map of the project boundary.

6 The owner of the solar energy facility shall send copies of the
7 notification to the board of county commissioners of every county in
8 which all or a portion of the solar energy facility is to be located
9 within twenty-four (24) hours of filing said notification with the
10 Corporation Commission. If all or a portion of the solar energy
11 facility is to be located within the incorporated area of a
12 municipality, a copy of the notification shall also be sent to the
13 governing body of the municipality within twenty-four (24) hours of
14 filing said notification with the Corporation Commission.

15 B. Within six (6) months of submitting the notification to the
16 Corporation Commission as provided for in subsection A of this
17 section, the owner of the solar energy facility shall cause a copy
18 of the notification to be published in a newspaper of general
19 circulation in the county or counties in which all or a portion of
20 the solar energy facility is to be located. Proof of publication
21 shall be submitted to the Corporation Commission.

22 C. Within six (6) months of submitting the notification to the
23 Corporation Commission as provided in subsection A of this section,
24

1 the owner of the solar energy facility shall cause a copy of the
2 notification to be sent, by certified mail, to:

3 1. Any operator, as reflected in the records of the Corporation
4 Commission, conducting oil and gas operations upon all or any part
5 of the surface estate on which the solar energy developer intends to
6 construct the solar energy facility;

7 2. Any operator, as reflected in the records of the Corporation
8 Commission, of an unspaced unit or a unit created by order of the
9 Corporation Commission, conducting oil and gas operations for a unit
10 where all or any part of the unit area is within the geographical
11 boundaries of the surface estate on which the solar energy developer
12 intends to construct the solar energy facility;

13 3. All lessees of oil and gas leases covering the mineral
14 estate underlying any part of the tracts of land that are filed of
15 record with the county clerk in the county where the tracts are
16 located and whose primary term has not expired. This paragraph
17 shall apply to tracts of land not described in paragraphs 1 and 2 of
18 this subsection on which the solar energy developer intends to
19 construct a solar energy facility;

20 4. Any owner of a working interest arising from an oil and gas
21 lease, as reflected in the records of the Corporation Commission, of
22 a unit created by order of the Corporation Commission, where all or
23 any part of the unit area is within the geographical boundaries of
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1 the surface estate on which the solar energy developer intends to
2 construct the solar energy facility; and

3 5. Any operator of a well permitted by the Corporation
4 Commission for injection or disposal purposes, as reflected in the
5 records of the Corporation Commission, where such well is located
6 within the geographical boundaries of the surface estate on which
7 the solar energy developer intends to construct the solar energy
8 facility.

9 If the solar energy developer makes a search with reasonable
10 diligence and the whereabouts of a party entitled to notice cannot
11 be ascertained or the notice cannot be delivered, an affidavit
12 attesting to such diligent search shall be submitted to the
13 Corporation Commission.

14 D. Within sixty (60) days of publication of the notification in
15 a newspaper of general circulation as provided for in subsection B
16 of this section, the owner of the solar energy facility shall hold a
17 public meeting. Notice of the public meeting shall be published in
18 a newspaper of general circulation and submitted to the board of
19 county commissioners in the county or counties in which all or a
20 portion of the solar energy facility is to be located. The notice
21 shall contain the place, date, and time of the public meeting.
22 Proof of publication of the notice shall be submitted to the
23 Corporation Commission. The public meeting shall be held in the
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1 county or in one of the counties in which all or a portion of the
2 solar energy facility is to be located.

3 E. With regard to the surface estate upon which the owner of a
4 solar energy facility intends to construct the facility, at least
5 sixty (60) days before entering upon the surface estate for the
6 purpose of commencement of construction, the owner shall provide
7 written notice, by certified mail, of its intent to construct the
8 solar energy facility to the parties described in subsection C of
9 this section.

10 The notice shall contain a map or plat of the proposed location,
11 with sufficient specificity to identify the solar energy facility to
12 be located on the governmental section and the approximate date
13 construction is proposed to commence. If the solar energy developer
14 makes a search with reasonable diligence and the whereabouts of a
15 party entitled to notice cannot be ascertained or the notice cannot
16 be delivered, an affidavit attesting to such diligent search shall
17 be submitted to the Corporation Commission. Within thirty (30) days
18 of receiving such notice, any party described in subsection C of
19 this section shall reciprocate, in writing by certified mail, the
20 relevant site, operational, and infrastructure information
21 sufficient to assist with the safe construction and operation of the
22 solar energy facility. This information shall include American Land
23 Title Association surveys, if available, and technical
24 specifications for existing subsurface or surface improvements.

1 Any information provided by an oil and gas operator or solar
2 energy developer pursuant to this subsection shall be confidential
3 and proprietary. The parties shall:

4 1. Use such information solely for the purposes of this
5 section;

6 2. Not disclose such information to any third party without the
7 prior written consent of the disclosing party, except as required by
8 law or order of a court of competent jurisdiction or the Corporation
9 Commission; and

10 3. Upon written request of the disclosing party, return or
11 destroy all such information and certify the same in writing.

12 The confidentiality obligations of this subsection shall not be
13 limited by or contingent upon the terms of any landowner lease
14 agreement or surface use agreement. Violation of this provision
15 shall constitute grounds for the Corporation Commission to suspend
16 or revoke a permit issued under this act, in addition to any other
17 remedies available at law or in equity.

18 F. The owner of a solar energy facility shall not commence
19 construction on the facility until the notification and public
20 meeting requirements of this section have been satisfied. Upon the
21 commencement of the sixty-day notice required under subsection E of
22 this section, the owner shall notify the Corporation Commission that
23 such notice has commenced and shall include an affirmation that all
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1 other notices and notifications required by this section have been
2 properly provided.

3 If an owner of a solar energy facility fails to submit any
4 information required by this section, the owner shall be subject to
5 an administrative penalty not to exceed One Thousand Five Hundred
6 Dollars (\$1,500.00) per day, per violation, as provided by law.

7 G. The provisions of this section shall only apply to
8 facilities that commence construction after May 1, 2027, and shall
9 not apply to any facilities that commenced construction before that
10 date, including any subsequent maintenance, repairs, modifications,
11 or other work on existing facilities.

12 SECTION 18. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 809.8 of Title 17, unless there
14 is created a duplication in numbering, reads as follows:

15 A. When applicable, a solar energy developer shall submit site
16 plans and fees for any new solar energy facility to the Office of
17 the Oklahoma State Fire Marshal for review. Such site plans shall
18 be submitted when the solar energy facility is sixty percent (60%)
19 complete in design development. The site plans shall include an
20 accurate representation of:

- 21 1. Photovoltaic modules;
- 22 2. Inverters;
- 23 3. Monitoring and control equipment;
- 24 4. Substations;

1 5. Collection lines;

2 6. Access roads;

3 7. Temporary construction areas;

4 8. Operation and maintenance facilities; and

5 9. Other relevant supporting infrastructure.

6 B. Review by the Office of the Oklahoma State Fire Marshal
7 shall be limited to compliance with applicable fire and building
8 safety codes, including:

9 1. The Oklahoma-adopted International Building Code, as
10 codified at OAC 748:20-2-1; and

11 2. The 2018 Edition of the International Fire Code, as codified
12 at OAC 748:20-4-1.

13 C. The Office of the Oklahoma State Fire Marshal or local
14 authority having jurisdiction, where applicable, shall complete any
15 review subject to this section as soon as practicable, but in no
16 event later than thirty (30) calendar days following receipt of
17 complete site plans and fees. In the event the Office of the
18 Oklahoma State Fire Marshal or local authority having jurisdiction
19 does not complete its review within thirty (30) calendar days, any
20 applicable permits and certificates shall be deemed issued.

21 D. During the pendency of the review by the Office of the
22 Oklahoma State Fire Marshal, the following on-site activities may
23 proceed:

24 1. Timbering, clearing, and grubbing vegetation;

2. Civil grading and earthwork;

3. Installation of stormwater pollution prevention measures and best management practices;

4. Installation of laydown areas and substation concrete foundation pads, including rough grading and gravel;

5. Installation of racking systems, inverters, photovoltaic modules, low-voltage collection systems, and above-ground transmission poles;

6. Public road improvements, entrance installations, and service road construction;

7. Placement of construction trailers with temporary power, fiber connections, and portable sanitation facilities;

8. Sub-grade open trenching;

9. Installation of on-grade concrete foundations; and

10. Installation of structural columns and beams.

E. The Office of the Oklahoma State Fire Marshal may assess a plan review fee at a rate of six cents (\$0.06) per square foot of actual erected solar facilities, provided that the total fee shall not exceed Five Hundred Thousand Dollars (\$500,000.00) for any single solar energy facility. The amount of such fee shall have a reasonable connection to the work actually performed by the Office of the Oklahoma State Fire Marshal.

F. Of the fees collected pursuant to this section:

1 1. Seventy-five percent (75%) shall be distributed to the local
2 fire department providing primary fire protection services to the
3 jurisdiction where the facility is located, within sixty (60) days
4 of receipt. Funds distributed pursuant to this paragraph shall be
5 used solely for fire protection, fire prevention, inspections,
6 training, or emergency response activities related to the facility;
7 and

8 2. Twenty-five percent (25%) shall be distributed to the permit
9 issuing authority, whether the Office of the Oklahoma State Fire
10 Marshal or a recognized local authority having jurisdiction, if
11 delegated.

12 G. If the Office of the Oklahoma State Fire Marshal delegates
13 any site plan review, permitting, or similar authority over a solar
14 energy facility to a recognized local authority having jurisdiction,
15 fees and timing shall continue to conform the requirements of this
16 section.

17 H. The provisions of this section shall only apply to solar
18 energy facilities designed to provide electricity to the grid, as
19 well as any utility-scale solar energy facility designed to deliver
20 electricity directly from a generating facility to a single end-use
21 customer.

22 SECTION 19. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 809.9 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 A. In addition to complying with the provisions of this act, the
2 owner of a solar energy facility shall comply with the provisions of
3 the Commercial Solar Facility Decommissioning Act in accordance with
4 Section 820 et seq. of Title 17 of the Oklahoma Statutes.

5 B. An owner shall submit evidence of financial assurance
6 sufficient to secure the performance of its decommissioning
7 obligations in accordance with the Commercial Solar Facility
8 Decommissioning Act on or before the tenth year of operation of the
9 facility and thereafter upon request by the Commission, but at least
10 once every five (5) years for the life of the solar energy facility.
11 The amount of such financial assurance shall be calculated in
12 accordance with the Commercial Solar Facility Decommissioning Act,
13 but shall not be less than one hundred twenty-five percent (125%) of
14 the estimate of the total cost of decommissioning, less the salvage
15 value of facility equipment and any portion of the value of such
16 equipment pledged to secure outstanding debt.

17 SECTION 20. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 809.10 of Title 17, unless there
19 is created a duplication in numbering, reads as follows:

20 The Oklahoma Corporation Commission shall have authority to
21 promulgate rules as necessary to implement the provisions of the
22 Oklahoma Solar Energy Development Act and to set fees necessary to
23 perform the duties and responsibilities of the Commission pursuant
24 to the act. The Oklahoma Corporation Commission shall have

1 exclusive jurisdiction to enforce the provisions of this act that
2 are within its authority.

3 SECTION 21. This act shall become effective July 1, 2026.

4 SECTION 22. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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